



Bill Number: S.B. 1170

Werner Floor Amendment

Reference to: Senate engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Applies new enhanced sentencing requirements to the sale of both dangerous and narcotic drugs, and expands the dangerous crimes against children (DCAC) statute to include selling dangerous or narcotic drugs to a minor that contribute to the minor's death.
2. Requires a medical examiner who performs an initial autopsy on a minor, and who finds that the minor's death resulted from complications from dangerous or narcotic drug intoxication or overdose, to order a second autopsy by another county medical examiner or independent medical examiner who is a licensed physician.
3. Specifies that if the second autopsy concludes that a dangerous or narcotic drug sold to the minor contributed to the minor's death, and that the minor would not have died if not for the drug, then new sentencing ranges apply for the person who sold the drug.
4. Modifies the new sentencing requirements for persons convicted of selling a dangerous or narcotic drug that contributes to the death of a minor by removing the minimum, presumptive and maximum sentences, and instead requiring the person be sentenced to the corresponding aggravated term of imprisonment for the offense.
5. Specifies that if the dangerous or narcotic drug sold is meth or fentanyl, the person must be sentenced to the corresponding maximum sentence for sale of a dangerous or narcotic drug involving meth or fentanyl.
6. Specifies that if the minor who dies was under 15 years old, the person must be given the maximum sentence for a DCAC involving the sale of a dangerous or narcotic drug to a minor that contributes to the minor's death.
7. Adds determining whether a dangerous or narcotic drug contributed to the death of a minor to the statutory duties of the county medical examiner.
8. Makes technical and conforming changes.

ADDITIONAL COW
WERNER FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1170
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 11-594, Arizona Revised Statutes, is amended
3 to read:

4 11-594. Powers and duties of county medical examiner

5 A. The county medical examiner or alternate medical examiner shall
6 direct a death investigation and, on a determination that the
7 circumstances of the death provide jurisdiction pursuant to section
8 11-593, subsection B, shall:

9 1. Take charge of the dead body.

10 2. Determine if an autopsy is required.

11 3. Certify to the cause and manner of death following completion of
12 the death investigation, reduce the findings to writing and promptly make
13 a full report on forms prescribed for that purpose.

14 4. Have subpoena authority for all documents, records and papers
15 deemed useful in the death investigation.

16 5. Execute a death certificate provided by the state registrar of
17 vital statistics indicating the cause and the manner of death for those
18 bodies for which a death investigation has been conducted and jurisdiction
19 is assumed.

20 6. Give approval for cremation or alkaline hydrolysis of a dead
21 body after a death investigation and record the approval on the death
22 certificate.

23 7. Notify the county attorney or other law enforcement authority
24 when death is found to be from nonnatural causes.

25 8. Carry out the duties specified under section 28-668.

26 9. Carry out the duties specified under title 36, chapter 7,
27 article 3.

1 10. Provide a blood sample from a deceased person for the purpose
2 of communicable disease testing pursuant to sections 13-1210 and 36-670 if
3 the blood is available and the collection or release will not interfere
4 with a medical examination, autopsy or certification of death.

5 11. Observe all policies adopted by the board of supervisors
6 regarding conflicts of interest and disclosure of noncounty employment.

7 [12. CARRY OUT THE DUTIES SPECIFIED UNDER SECTION 13-3407,
8 SUBSECTION F AND SECTION 13-3408, SUBSECTION J.]

9 B. The county medical examiner or alternate medical examiner may:

10 1. Assign to a medical death investigator or other qualified
11 personnel all aspects of a death investigation except performing
12 autopsies.

13 2. Authorize forensic pathologists to perform examinations and
14 autopsies. The medical examiner or alternate medical examiner may
15 authorize medical students or residents and fellows in pathology training
16 to perform autopsies under the supervision of a licensed physician who is
17 board certified in forensic pathology, pursuant to procedures adopted by
18 the county medical examiner or alternate medical examiner. Authorization
19 and the amount to be paid by the county for pathology services are subject
20 to approval of the board of supervisors.

21 3. Authorize pathologist assistants to assist with performing
22 autopsies under the direct supervision of a licensed physician who is
23 board certified in forensic pathology, pursuant to procedures adopted by
24 the county medical examiner or alternate medical examiner. A pathologist
25 assistant may not certify a cause of death or independently perform an
26 autopsy.

27 4. Delegate any power, duty or function, whether ministerial or
28 discretionary, vested by this chapter in the medical examiner or alternate
29 medical examiner to a person meeting the qualifications prescribed in this
30 chapter who is employed by or who has contracted with the county to
31 provide death investigation services. The medical examiner or alternate
32 medical examiner shall be responsible for the official acts of the person
33 designated pursuant to this section and shall act under the name and
34 authority of the medical examiner or alternate medical examiner.

35 5. Authorize the taking of organs and tissues as they prove to be
36 usable for transplants, other treatment, therapy, education or research if
37 all of the requirements of title 36, chapter 7, article 3 are met. The
38 medical examiner or alternate medical examiner shall give this
39 authorization within a time period that allows a medically viable
40 donation.

41 6. Authorize licensed physicians, surgeons or trained technicians
42 to remove parts of bodies provided they follow an established protocol
43 approved by the medical examiner or alternate medical examiner.

44 7. Limit the removal of organs or tissues for transplants or other
45 therapy or treatment if, based on a review of available medical and
46 investigative information within a time that allows a medically viable
47 donation, the medical examiner or alternate medical examiner makes an

1 initial determination that their removal would interfere with a medical
2 examination, autopsy or certification of death. Before making a final
3 decision to limit the removal of organs, the medical examiner or alternate
4 medical examiner shall consult with the organ procurement organization.
5 After the consultation and when the organ procurement organization
6 provides information that the organ procurement organization reasonably
7 believes could alter the initial decision and at the request of the organ
8 procurement organization, the medical examiner or alternate medical
9 examiner shall conduct a physical examination of the body. If the medical
10 examiner or alternate medical examiner limits the removal of organs, the
11 medical examiner or alternate medical examiner shall maintain
12 documentation of this decision and shall make the documentation available
13 to the organ procurement organization.

14 C. A county medical examiner or alternate medical examiner shall
15 not be held civilly or criminally liable for any acts performed in good
16 faith pursuant to subsection A, paragraph 10 and subsection B, paragraphs
17 5, 6 and 7 of this section.

18 D. If a dispute arises over the findings of the medical examiner's
19 report, the medical examiner, on an order of the superior court, shall
20 make available all evidence and documentation to a court-designated
21 licensed forensic pathologist for review, and the results of the review
22 shall be reported to the superior court in the county issuing the order.

23 E. For providing external examinations and autopsies pursuant to
24 this section, the medical examiner may charge a fee established by the
25 board of supervisors pursuant to section 11-251.08.

26 F. The county medical examiner or alternate medical examiner is
27 entitled to all medical records and related records of a person for whom
28 the medical examiner is required to certify cause of death.>>

29 <<Sec. 2. Section 13-705, Arizona Revised Statutes, is amended to
30 read:

31 13-705. Dangerous crimes against children; sentences;
32 definitions

33 A. A person who is at least eighteen years of age and who is
34 convicted of a dangerous crime against children in the first degree
35 involving commercial sexual exploitation of a minor or child sex
36 trafficking and the person has previously been convicted of a dangerous
37 crime against children in the first degree shall be sentenced to
38 imprisonment in the custody of the state department of corrections for
39 natural life. A person who is sentenced to natural life is not eligible
40 for commutation, parole, work furlough, work release or release from
41 confinement on any basis for the remainder of the person's natural life.

42 B. A person who is at least eighteen years of age and who is
43 convicted of a dangerous crime against children in the first degree
44 involving sexual assault of a minor who is twelve years of age or younger
45 or sexual conduct with a minor who is twelve years of age or younger shall
46 be sentenced to life imprisonment and is not eligible for suspension of
47 sentence, probation, pardon or release from confinement on any basis

1 except as specifically authorized by section 31-233, subsection A or B
2 until the person has served thirty-five years or the sentence is commuted.
3 This subsection does not apply to masturbatory contact.

4 C. Except as otherwise provided in this section, a person who is at
5 least eighteen years of age or who has been tried as an adult and who is
6 convicted of a dangerous crime against children in the first degree
7 involving attempted first degree murder of a minor who is under twelve
8 years of age, sexual assault of a minor who is under twelve years of age,
9 sexual conduct with a minor who is under twelve years of age or
10 manufacturing methamphetamine under circumstances that cause physical
11 injury to a minor who is under twelve years of age may be sentenced to
12 life imprisonment and is not eligible for suspension of sentence,
13 probation, pardon or release from confinement on any basis except as
14 specifically authorized by section 31-233, subsection A or B until the
15 person has served thirty-five years or the sentence is commuted. If a
16 life sentence is not imposed pursuant to this subsection, the person shall
17 be sentenced to a term of imprisonment as follows:

18	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
19	13 years	20 years	27 years

20 D. Except as otherwise provided in this section, a person who is at
21 least eighteen years of age or who has been tried as an adult and who is
22 convicted of a dangerous crime against children in the first degree
23 involving second degree murder of a minor who is under fifteen years of
24 age may be sentenced to life imprisonment and is not eligible for
25 suspension of sentence, probation, pardon or release from confinement on
26 any basis except as specifically authorized by section 31-233, subsection
27 A or B until the person has served thirty-five years or the sentence is
28 commuted. If a life sentence is not imposed pursuant to this subsection,
29 the person shall be sentenced to a term of imprisonment as follows:

30	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
31	25 years	30 years	35 years

32 E. Except as otherwise provided in this section, a person who is at
33 least eighteen years of age or who has been tried as an adult and who is
34 convicted of a dangerous crime against children in the first degree
35 involving attempted first degree murder of a minor who is twelve, thirteen
36 or fourteen years of age, sexual assault of a minor who is twelve,
37 thirteen or fourteen years of age, taking a child for the purpose of
38 prostitution, child sex trafficking, commercial sexual exploitation of a
39 minor, sexual conduct with a minor who is twelve, thirteen or fourteen
40 years of age, manufacturing methamphetamine under circumstances that cause
41 physical injury to a minor who is twelve, thirteen or fourteen years of
42 age[,] ~~[or]~~ involving or using minors in drug offenses[, SELLING A
43 DANGEROUS DRUG PURSUANT TO SECTION 13-3407, SUBSECTION F OR SELLING A
44 NARCOTIC DRUG PURSUANT TO SECTION 13-3408, SUBSECTION J] shall be
45 sentenced to a term of imprisonment as follows:

46	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
47	13 years	20 years	27 years

1 A person who has been previously convicted of one predicate felony shall
2 be sentenced to a term of imprisonment as follows:

3	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
4	23 years	30 years	37 years

5 F. Except as otherwise provided in this section, a person who is at
6 least eighteen years of age or who has been tried as an adult and who is
7 convicted of a dangerous crime against children in the first degree
8 involving aggravated assault, unlawful mutilation, molestation of a child,
9 sexual exploitation of a minor, aggravated luring a minor for sexual
10 exploitation, child abuse or kidnapping shall be sentenced to a term of
11 imprisonment as follows:

12	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
13	10 years	17 years	24 years

14 A person who has been previously convicted of one predicate felony shall
15 be sentenced to a term of imprisonment as follows:

16	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
17	21 years	28 years	35 years

18 G. Except as otherwise provided in this section, if a person is at
19 least eighteen years of age or has been tried as an adult and is convicted
20 of a dangerous crime against children involving luring a minor for sexual
21 exploitation, sexual extortion or unlawful age misrepresentation and is
22 sentenced to a term of imprisonment, the term of imprisonment is as
23 follows and the person is not eligible for release from confinement on any
24 basis except as specifically authorized by section 31-233, subsection A or
25 B until the sentence imposed by the court has been served or is commuted,
26 except that if the person is convicted of unlawful age misrepresentation
27 the person is eligible for release pursuant to section 41-1604.07:

28	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
29	5 years	10 years	15 years

30 A person who has been previously convicted of one predicate felony shall
31 be sentenced to a term of imprisonment as follows and the person is not
32 eligible for suspension of sentence, probation, pardon or release from
33 confinement on any basis except as specifically authorized by section
34 31-233, subsection A or B until the sentence imposed by the court has been
35 served or is commuted, except that if the person is convicted of unlawful
36 age misrepresentation the person is eligible for release pursuant to
37 section 41-1604.07:

38	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
39	8 years	15 years	22 years

40 H. Except as otherwise provided in this section, if a person is at
41 least eighteen years of age or has been tried as an adult and is convicted
42 of a dangerous crime against children involving sexual abuse or bestiality
43 under section 13-1411, subsection A, paragraph 2 and is sentenced to a
44 term of imprisonment, the term of imprisonment is as follows and the
45 person is not eligible for release from confinement on any basis except as
46 specifically authorized by section 31-233, subsection A or B until the

1 sentence imposed by the court has been served, the person is eligible for
2 release pursuant to section 41-1604.07 or the sentence is commuted:

3	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
4	2.5 years	5 years	7.5 years

5 A person who has been previously convicted of one predicate felony shall
6 be sentenced to a term of imprisonment as follows and the person is not
7 eligible for suspension of sentence, probation, pardon or release from
8 confinement on any basis except as specifically authorized by section
9 31-233, subsection A or B until the sentence imposed by the court has been
10 served, the person is eligible for release pursuant to section 41-1604.07
11 or the sentence is commuted:

12	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
13	8 years	15 years	22 years

14 I. Except as otherwise provided in this section, a person who is at
15 least eighteen years of age or who has been tried as an adult and who is
16 convicted of a dangerous crime against children in the first degree
17 involving continuous sexual abuse of a child shall be sentenced to a term
18 of imprisonment as follows:

19	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
20	39 years	60 years	81 years

21 A person who has been previously convicted of one predicate felony shall
22 be sentenced to a term of imprisonment as follows:

23	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
24	69 years	90 years	111 years

25 J. The presumptive sentences prescribed in subsections C, D, E, F
26 and I of this section or subsections G and H of this section if the person
27 has previously been convicted of a predicate felony may be increased or
28 decreased pursuant to section 13-701, subsections C, D and E.

29 K. Except as provided in subsections G, H, M and N of this section,
30 a person who is sentenced for a dangerous crime against children in the
31 first degree pursuant to this section is not eligible for suspension of
32 sentence, probation, pardon or release from confinement on any basis
33 except as specifically authorized by section 31-233, subsection A or B
34 until the sentence imposed by the court has been served or commuted.

35 L. A person who is convicted of any dangerous crime against
36 children in the first degree pursuant to subsection C, D, E, F or I of
37 this section and who has been previously convicted of two or more
38 predicate felonies shall be sentenced to life imprisonment and is not
39 eligible for suspension of sentence, probation, pardon or release from
40 confinement on any basis except as specifically authorized by section
41 31-233, subsection A or B until the person has served not fewer than
42 thirty-five years or the sentence is commuted.

43 M. Notwithstanding chapter 10 of this title, a person who is at
44 least eighteen years of age or who has been tried as an adult and who is
45 convicted of a dangerous crime against children in the second degree
46 pursuant to subsection B, C, E, F or I of this section is guilty of a
47 class 3 felony and if the person is sentenced to a term of imprisonment,

1 the term of imprisonment is as follows and the person is not eligible for
2 release from confinement on any basis except as specifically authorized by
3 section 31-233, subsection A or B until the person has served the sentence
4 imposed by the court, the person is eligible for release pursuant to
5 section 41-1604.07 or the sentence is commuted:

6	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
7	5 years	10 years	15 years

8 N. A person who is convicted of any dangerous crime against
9 children in the second degree and who has been previously convicted of one
10 or more predicate felonies is not eligible for suspension of sentence,
11 probation, pardon or release from confinement on any basis except as
12 specifically authorized by section 31-233, subsection A or B until the
13 sentence imposed by the court has been served, the person is eligible for
14 release pursuant to section 41-1604.07 or the sentence is commuted.

15 O. Section 13-704, subsection J and section 13-707, subsection B
16 apply to the determination of prior convictions.

17 P. The sentence imposed on a person by the court for a dangerous
18 crime against children under subsection H of this section involving sexual
19 abuse may be served concurrently with other sentences if the offense
20 involved only one victim. The sentence imposed on a person for any other
21 dangerous crime against children in the first or second degree shall be
22 consecutive to any other sentence imposed on the person at any time,
23 including sexual abuse of the same victim.

24 Q. In this section, for purposes of punishment an unborn child
25 shall be treated like a minor who is under twelve years of age.

26 R. A dangerous crime against children is in the first degree if it
27 is a completed offense and is in the second degree if it is a preparatory
28 offense, except attempted first degree murder is a dangerous crime against
29 children in the first degree.

30 S. It is not a defense to a dangerous crime against children that
31 the minor is a person posing as a minor or is otherwise fictitious if the
32 defendant knew or had reason to know the purported minor was under fifteen
33 years of age.

34 T. For the purposes of this section:

35 1. "Dangerous crime against children":

36 (a) Means any of the following that is committed against a minor
37 who is under fifteen years of age or against a person posing as a minor if
38 the defendant knew or had reason to know that the purported minor was
39 under fifteen years of age:

40 (i) Second degree murder.

41 (ii) Aggravated assault resulting in serious physical injury or
42 involving the discharge, use or threatening exhibition of a deadly weapon
43 or dangerous instrument.

44 (iii) Sexual assault.

45 (iv) Molestation of a child.

46 (v) Sexual conduct with a minor.

47 (vi) Commercial sexual exploitation of a minor.

1 (vii) Sexual exploitation of a minor.
2 (viii) Child abuse as prescribed in section 13-3623, subsection A,
3 paragraph 1.
4 (ix) Kidnapping.
5 (x) Sexual abuse.
6 (xi) Taking a child for the purpose of prostitution as prescribed
7 in section 13-3206.
8 (xii) Child sex trafficking as prescribed in section 13-3212.
9 (xiii) Involving or using minors in drug offenses.
10 (xiv) Continuous sexual abuse of a child.
11 (xv) Attempted first degree murder.
12 (xvi) Sex trafficking.
13 (xvii) Manufacturing methamphetamine under circumstances that cause
14 physical injury to a minor.
15 (xviii) Bestiality as prescribed in section 13-1411, subsection A,
16 paragraph 2.
17 (xix) Luring a minor for sexual exploitation.
18 (xx) Aggravated luring a minor for sexual exploitation.
19 (xxi) Unlawful age misrepresentation.
20 (xxii) Unlawful mutilation.
21 (xxiii) Sexual extortion as prescribed in section 13-1428.
22 [(xxiv) SELLING A DANGEROUS DRUG AS PRESCRIBED IN SECTION 13-3407.]
23 SUBSECTION F.
24 [(xxv) SELLING A NARCOTIC DRUG AS PRESCRIBED IN SECTION 13-3408.]
25 SUBSECTION J.]
26 (b) For the purposes of subdivision (a), items (vi) and (vii) of
27 this paragraph, includes a visual depiction that is indistinguishable from
28 an actual minor who is under fifteen years of age.
29 2. "Predicate felony" means any felony involving child abuse
30 pursuant to section 13-3623, subsection A, paragraph 1, a sexual offense,
31 conduct involving the intentional or knowing infliction of serious
32 physical injury or the discharge, use or threatening exhibition of a
33 deadly weapon or dangerous instrument, or a dangerous crime against
34 children in the first or second degree.>>
35 <<Sec. 3. Section 13-3407, Arizona Revised Statutes, is amended to
36 read:
37 13-3407. Possession, use, administration, acquisition, sale,
38 manufacture or transportation of dangerous drugs:
39 classification
40 A. A person shall not knowingly:
41 1. Possess or use a dangerous drug.
42 2. Possess a dangerous drug for sale.
43 3. Possess equipment or chemicals, or both, for the purpose of
44 manufacturing a dangerous drug.
45 4. Manufacture a dangerous drug.
46 5. Administer a dangerous drug to another person.

1 6. Obtain or procure the administration of a dangerous drug by
2 fraud, deceit, misrepresentation or subterfuge.

3 7. Transport for sale, import into this state or offer to transport
4 for sale or import into this state, sell, transfer or offer to sell or
5 transfer a dangerous drug.

6 B. A person who violates:

7 1. Subsection A, paragraph 1 of this section is guilty of a class 4
8 felony. Unless the drug involved is lysergic acid diethylamide,
9 methamphetamine, amphetamine or phencyclidine or the person was previously
10 convicted of a felony offense or a violation of this section or section
11 13-3408, the court on motion of the state, considering the nature and
12 circumstances of the offense, for a person not previously convicted of any
13 felony offense or a violation of this section or section 13-3408 may enter
14 judgment of conviction for a class 1 misdemeanor and make disposition
15 accordingly or may place the defendant on probation in accordance with
16 chapter 9 of this title and refrain from designating the offense as a
17 felony or misdemeanor until the probation is successfully terminated. The
18 offense shall be treated as a felony for all purposes until the court
19 enters an order designating the offense a misdemeanor.

20 2. Subsection A, paragraph 2 of this section is guilty of a class 2
21 felony.

22 3. Subsection A, paragraph 3 of this section is guilty of a class 3
23 felony, except that if the offense involved methamphetamine, the person is
24 guilty of a class 2 felony.

25 4. Subsection A, paragraph 4 of this section is guilty of a class 2
26 felony.

27 5. Subsection A, paragraph 5 of this section is guilty of a class 2
28 felony.

29 6. Subsection A, paragraph 6 of this section is guilty of a class 3
30 felony.

31 7. Subsection A, paragraph 7 of this section is guilty of a class 2
32 felony.

33 C. Except as provided in subsection E of this section, a person who
34 is convicted of a violation of subsection A, paragraph 1, 3 or 6 and who
35 has not previously been convicted of any felony or who has not been
36 sentenced pursuant to section 13-703, section 13-704, section 13-706,
37 subsection A, section 13-708, subsection D or any other law making the
38 convicted person ineligible for probation is eligible for probation.

39 D. Except as provided in subsection E of this section, if the
40 aggregate amount of dangerous drugs involved in one offense or all of the
41 offenses that are consolidated for trial equals or exceeds the statutory
42 threshold amount, a person who is convicted of a violation of subsection
43 A, paragraph 2, 5 or 7 of this section is not eligible for suspension of
44 sentence, probation, pardon or release from confinement on any basis until
45 the person has served the sentence imposed by the court, the person is
46 eligible for release pursuant to section 41-1604.07 or the sentence is
47 commuted.

1 E. If ~~[the]~~ [A] person is convicted of a violation of subsection A,
2 paragraph 2, 3, 4 or 7 of this section and the drug involved is
3 methamphetamine, the person shall be sentenced as follows:

4 <u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
5 5 calendar years	10 calendar years	15 calendar years

6 A person who has previously been convicted of a violation of subsection A,
7 paragraph 2, 3, 4 or 7 of this section involving methamphetamine or
8 section 13-3407.01 shall be sentenced as follows:

9 <u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
10 10 calendar years	15 calendar years	20 calendar years

11 [F. IF A PERSON IS CONVICTED OF SELLING A DANGEROUS DRUG IN
12 VIOLATION OF SUBSECTION A, PARAGRAPH 7 OF THIS SECTION, THE VICTIM OF THE
13 OFFENSE WAS A MINOR AND AN INITIAL AUTOPSY FINDS THAT THE CAUSE OF THE
14 MINOR'S DEATH RESULTED FROM COMPLICATIONS OF DRUG INTOXICATION, OVERDOSE
15 OR THE PRESENCE OF A DANGEROUS DRUG, THE MEDICAL EXAMINER SHALL ORDER A
16 SECOND AUTOPSY THAT IS CONDUCTED BY ANOTHER COUNTY'S MEDICAL EXAMINER OR
17 AN INDEPENDENT MEDICAL EXAMINER WHO IS A LICENSED PHYSICIAN. IF THE
18 MEDICAL EXAMINER WHO CONDUCTS THE SECOND AUTOPSY CONCLUDES THAT THE
19 DANGEROUS DRUG THAT WAS SOLD TO THE MINOR CONTRIBUTED TO THE MINOR'S DEATH
20 AND THAT THE MINOR WOULD NOT HAVE DIED BUT FOR THE DANGEROUS DRUG SOLD,
21 THE PERSON SHALL BE SENTENCED TO THE AGGRAVATED TERM OF IMPRISONMENT,
22 EXCEPT THAT:

23 1. IF THE DRUG INVOLVED IS METHAMPHETAMINE, THE DEFENDANT SHALL BE
24 SENTENCED TO THE MAXIMUM SENTENCE AUTHORIZED UNDER SUBSECTION E OF THIS
25 SECTION.

26 2. IF THE MINOR WAS UNDER FIFTEEN YEARS OF AGE, THE DEFENDANT SHALL
27 BE SENTENCED TO THE MAXIMUM SENTENCE AUTHORIZED SECTION 13-705, SUBSECTION
28 E.]

29 ~~[F.]~~ [G.] A person who is convicted of a violation of subsection A,
30 paragraph 4 of this section or subsection A, paragraph 2, 3 or 7 of this
31 section involving methamphetamine is not eligible for suspension of
32 sentence, probation, pardon or release from confinement on any basis until
33 the person has served the sentence imposed by the court, the person is
34 eligible for release pursuant to section 41-1604.07 or the sentence is
35 commuted.

36 ~~[G.]~~ [H.] If a person is convicted of a violation of subsection A,
37 paragraph 5 of this section, if the drug is administered without the other
38 person's consent, if the other person is under eighteen years of age and
39 if the drug is flunitrazepam, gamma hydroxy butrate or ketamine
40 hydrochloride, the convicted person is not eligible for suspension of
41 sentence, probation, pardon or release from confinement on any basis until
42 the person has served the sentence imposed by the court, the person is
43 eligible for release pursuant to section 41-1604.07 or the sentence is
44 commuted.

45 ~~[H.]~~ [I.] In addition to any other penalty prescribed by this
46 title, the court shall order a person who is convicted of a violation of
47 this section to pay a fine of not less than ~~[one thousand dollars]~~

1 ~~[\$1,000]~~ or three times the value as determined by the court of the
2 dangerous drugs involved in or giving rise to the charge, whichever is
3 greater, and not more than the maximum authorized by chapter 8 of this
4 title. A judge shall not suspend any part or all of the imposition of any
5 fine required by this subsection.

6 ~~[F.]~~ ~~[J.]~~ A person who is convicted of a violation of this section
7 for which probation or release before the expiration of the sentence
8 imposed by the court is authorized is prohibited from using any marijuana,
9 dangerous drug, narcotic drug or prescription-only drug except as lawfully
10 administered by a health care practitioner and as a condition of any
11 probation or release shall be required to submit to drug testing
12 administered under the supervision of the probation department of the
13 county or the state department of corrections, as appropriate, during the
14 duration of the term of probation or before the expiration of the sentence
15 imposed.

16 ~~[J.]~~ ~~[K.]~~ If a person who is convicted of a violation of this
17 section is granted probation, the court shall order that as a condition of
18 probation the person perform not less than three hundred sixty hours of
19 community restitution with an agency or organization that provides
20 counseling, rehabilitation or treatment for alcohol or drug abuse, an
21 agency or organization that provides medical treatment to persons who
22 abuse controlled substances, an agency or organization that serves persons
23 who are victims of crime or any other appropriate agency or organization.

24 ~~[K.]~~ ~~[L.]~~ The presumptive term imposed pursuant to subsection E of
25 this section may be mitigated or aggravated pursuant to section 13-701,
26 subsections D and E.>>

27 Sec. 4. Section 13-3408, Arizona Revised Statutes, is amended to
28 read:

29 ~~13-3408. Possession, use, administration, acquisition, sale,~~
30 ~~manufacture or transportation of narcotic drugs;~~
31 ~~classification~~

32 A. Except as provided in section 36-2850, paragraph 19, subdivision
33 (b), section 36-2852 and section 36-2853, subsection C, a person shall not
34 knowingly:

- 35 1. Possess or use a narcotic drug.
- 36 2. Possess a narcotic drug for sale.
- 37 3. Possess equipment or chemicals, or both, for the purpose of
38 manufacturing a narcotic drug.
- 39 4. Manufacture a narcotic drug.
- 40 5. Administer a narcotic drug to another person.
- 41 6. Obtain or procure the administration of a narcotic drug by
42 fraud, deceit, misrepresentation or subterfuge.
- 43 7. Transport for sale, import into this state, offer to transport
44 for sale or import into this state, sell, transfer or offer to sell or
45 transfer a narcotic drug.

46 B. A person who violates:

1 1. Subsection A, paragraph 1 of this section is guilty of a class 4
2 felony.
3 2. Subsection A, paragraph 2 of this section is guilty of a class 2
4 felony.
5 3. Subsection A, paragraph 3 of this section is guilty of a class 3
6 felony.
7 4. Subsection A, paragraph 4 of this section is guilty of a class 2
8 felony.
9 5. Subsection A, paragraph 5 of this section is guilty of a class 2
10 felony.
11 6. Subsection A, paragraph 6 of this section is guilty of a class 3
12 felony.
13 7. Subsection A, paragraph 7 of this section is guilty of a class 2
14 felony.
15 C. A person who is convicted of a violation of subsection A,
16 paragraph 1, 3 or 6 of this section and who has not previously been
17 convicted of any felony or who has not been sentenced pursuant to section
18 13-703, section 13-704, subsection A, B, C, D or E, section 13-706,
19 subsection A, section 13-708, subsection D or any other provision of law
20 making the convicted person ineligible for probation is eligible for
21 probation.
22 D. If the aggregate amount of narcotic drugs involved in one
23 offense or all of the offenses that are consolidated for trial equals or
24 exceeds the statutory threshold amount, a person who is convicted of a
25 violation of subsection A, paragraph 2, 5 or 7 of this section is not
26 eligible for suspension of sentence, probation, pardon or release from
27 confinement on any basis until the person has served the sentence imposed
28 by the court, the person is eligible for release pursuant to section
29 41-1604.07 or the sentence is commuted.
30 E. A person who is convicted of a violation of subsection A,
31 paragraph 4 of this section is not eligible for suspension of sentence,
32 probation, pardon or release from confinement on any basis until the
33 person has served the sentence imposed by the court, the person is
34 eligible for release pursuant to section 41-1604.07 or the sentence is
35 commuted.
36 F. If ~~the~~ A person is convicted of a violation of subsection A,
37 paragraph 2 or 7 of this section and the violation involves the sale to
38 another person of fentanyl in an amount of at least two hundred grams, the
39 person shall be sentenced as follows:
40 Minimum Presumptive Maximum
41 5 calendar years 10 calendar years 15 calendar years
42 A person who has previously been convicted of a violation of
43 subsection A, paragraph 2 or 7 of this section involving the sale to
44 another person of fentanyl in an amount of at least two hundred grams
45 shall be sentenced as follows:
46 Minimum Presumptive Maximum
47 10 calendar years 15 calendar years 20 calendar years

1 G. The presumptive term imposed pursuant to subsection F of this
2 section may be mitigated or aggravated pursuant to section 13-701,
3 subsections D and E.

4 H. If ~~the~~ A person is convicted of a violation of subsection A,
5 paragraphs 2 and 7 of this section and the violation involves the
6 possession of fentanyl in a motor vehicle in an amount of at least two
7 hundred grams, the person shall be sentenced as follows:

8 <u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
9 5 calendar years	10 calendar years	15 calendar years

10 A person who has previously been convicted of a violation of
11 subsection A, paragraphs 2 and 7 of this section involving the possession
12 of fentanyl in a motor vehicle in an amount of at least two hundred grams
13 shall be sentenced as follows:

14 <u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
15 10 calendar years	15 calendar years	20 calendar years

16 I. The presumptive term imposed pursuant to subsection H of this
17 section may be mitigated or aggravated pursuant to section 13-701,
18 subsections D and E.

19 J. IF A PERSON IS CONVICTED OF SELLING A NARCOTIC DRUG IN VIOLATION
20 OF SUBSECTION A, PARAGRAPH 7 OF THIS SECTION, [THE VICTIM OF THE OFFENSE
21 WAS A MINOR AND AN INITIAL AUTOPSY FINDS THAT THE CAUSE OF THE MINOR'S
22 DEATH RESULTED FROM COMPLICATIONS OF DRUG INTOXICATION, OVERDOSE OR THE
23 PRESENCE OF A NARCOTIC DRUG, THE MEDICAL EXAMINER SHALL ORDER A SECOND
24 AUTOPSY THAT IS CONDUCTED BY ANOTHER COUNTY'S MEDICAL EXAMINER OR AN
25 INDEPENDENT MEDICAL EXAMINER WHO IS A LICENSED PHYSICIAN. IF THE MEDICAL
26 EXAMINER WHO CONDUCTS THE SECOND AUTOPSY CONCLUDES THAT] THE NARCOTIC DRUG
27 [THAT WAS] SOLD [TO THE MINOR] CONTRIBUTED TO THE [MINOR'S] DEATH [OF A
28 MINOR] AND [THAT] THE MINOR WOULD NOT HAVE DIED BUT FOR THE NARCOTIC DRUG
29 SOLD, THE PERSON SHALL BE SENTENCED [AS FOLLOWS] [TO THE AGGRAVATED TERM
30 OF IMPRISONMENT, EXCEPT THAT]:

31 <u>MINIMUM</u>	<u>PRESUMPTIVE</u>	<u>MAXIMUM</u>
32 <u>10 CALENDAR YEARS</u>	<u>16 CALENDAR YEARS</u>	<u>25 CALENDAR YEARS</u>

33 1. IF THE DRUG INVOLVED IS FENTANYL, THE DEFENDANT SHALL BE
34 SENTENCED TO THE MAXIMUM SENTENCE AUTHORIZED UNDER SUBSECTION F OR H OF
35 THIS SECTION.

36 2. IF THE MINOR WAS UNDER FIFTEEN YEARS OF AGE, THE DEFENDANT SHALL
37 BE SENTENCED TO THE MAXIMUM SENTENCE AUTHORIZED UNDER SECTION 13-705,
38 SUBSECTION E.]

39 ~~J.~~ K. In addition to any other penalty prescribed by this title,
40 the court shall order a person who is convicted of a violation of this
41 section to pay a fine of not less than \$2,000 or three times the value as
42 determined by the court of the narcotic drugs involved in or giving rise
43 to the charge, whichever is greater, and not more than the maximum
44 authorized by chapter 8 of this title. A judge shall not suspend any part
45 or all of the imposition of any fine required by this subsection.

46 ~~K.~~ L. A person who is convicted of a violation of this section for
47 which probation or release before the expiration of the sentence imposed

1 by the court is authorized is prohibited from using any marijuana,
2 dangerous drug, narcotic drug or prescription-only drug except as lawfully
3 administered by a health care practitioner and as a condition of any
4 probation or release shall be required to submit to drug testing
5 administered under the supervision of the probation department of the
6 county or the state department of corrections, as appropriate, during the
7 duration of the term of probation or before the expiration of the sentence
8 imposed.

9 ~~+~~ M. If a person who is convicted of a violation of this section
10 is granted probation, the court shall order that as a condition of
11 probation the person perform not less than three hundred sixty hours of
12 community restitution with an agency or organization that provides
13 counseling, rehabilitation or treatment for alcohol or drug abuse, an
14 agency or organization that provides medical treatment to persons who
15 abuse controlled substances, an agency or organization that serves persons
16 who are victims of crime or any other appropriate agency or organization.

17 Sec. 5. Short title

18 This act may be cited as "Noah's Law".

19 Enroll and engross to conform

20 Amend title to conform

CARINE WERNER

1170FloorWERNER.docx

03/10/2026

04:29 PM

C: JV

130DEANZU